



SNAP 104-1

APPLICATION PROCESSING

Application Approval or Denial

Supersedes: SNAP 104-1 (04/25/2023)

Reference: 7 CFR 273.10, 7 CFR 273.2(g)(3), 7 CFR 273.2(a)(2), 7 CFR 273.2(c)(6), 7 CFR 273.2(f)(1)(ix), 7 CFR 273.12(a), 7 CFR 273.12(c)(2)(ii)

Overview:

All non-expedited applications must be approved or denied within 30 days following the date of application. Processing delays are the only exceptions to this rule.

ACTIONS WHEN APPLICATION IS APPROVED:

When an application is approved:

1. Authorize the benefit amount(s);
2. Send the appropriate approval notice including reporting requirements;
3. If an application is completed on the telephone and signed telephonically, it must be sent to the applicant with written instructions about how they can easily change incorrect information and that they must report these corrections within 10 days of the notice;
4. Send notification of eligibility for free school meals/milk to all households with school-aged children 3 years old and older; and,
5. Document in case notes in sufficient detail to determine the reasonableness and accuracy of the eligibility determination.

DEFINITIONS OF “ELIGIBILITY” AND MINIMUM ALLOTMENTS:

Federal law provides the basic eligibility rules for SNAP. **There are two basic pathways to gain financial eligibility for SNAP:**

- (1) Having income and resources below specified levels set out in federal SNAP law (regular eligibility); or,
- (2) Being “categorically,” or automatically, eligible based on receiving benefits from other specified low-income assistance programs. Traditional Categorical Eligibility (CE) describes households in which all members receive or are authorized to receive CASH assistance funded by TANF, TANF Post Employment, Tribal TANF, or SSI. Expanded categorically eligible (ECE) describes households in which all members receive or are authorized to receive non-cash assistance (in Montana this is the TANF Information and Referral Services brochure).

Traditional Categorical Eligibility (CE) and Expanded Categorical Eligibility (ECE) policies are described in more detail in SNAP 304-1.

If the prorated benefits amount for the initial month’s allotment is less than \$10, the allotment is not issued for the initial month.

All eligible (including Regular, Categorically Eligible, and Expanded Categorically Eligible) one and two person households receive **a minimum monthly allotment**, except for the initial month when the allotment is not issued.

All eligible households with three or more members eligible for a benefit amount receive that benefit amount except for the initial month when the allotment is not issued.

All eligible households (including Regular, Categorically Eligible, and Expanded Categorically Eligible) with three or more members passing the gross monthly income (GMI) and net monthly income (NMI) tests but are not eligible for a benefit amount are denied or closed.

ALLOTMENT PRORATED FOR MONTH OF APPLICATION:

The SNAP benefit amount for the initial month of application is prorated from the application date to the end of the month. The benefit amount is calculated for a household applying on the 31st as though it applies on the 30th.

COMBINED ALLOTMENTS:

A household receives, on the same day, a prorated allotment for the application month as well as the full allotment for the following month when the following criteria are met:

1. Applies on or after the 16th of the month;
2. Completes the application process;

3. Is determined eligible to receive benefits for the initial application month and the next month under normal or expedited processing guidelines; **and**,
4. The initial and next month's benefits are **authorized on the same day**.

NOTE: If for any reason benefits are authorized on two separate days, the second month's allotment is not issued until the normal issuance cycle for the month.

SUSPENSION OF BENEFITS:

Per 7 CFR 273.12(c)(2)(ii), suspension of benefits for one month may occur. The Eligibility Worker may suspend a household's certification **prospectively for one month** *if the household becomes temporarily ineligible because of a periodic increase in recurring income or other change not expected to continue in the subsequent month*. If the suspended household again becomes eligible, the State agency shall issue benefits to the household on the household's normal issuance date. All changes must be verified.

This type of situation is often seen in the first three months from application date. It is possible, due to prospected income that is known to be changing in the second month, that SNAP would be authorized for month one, denied for month two (due to a prospectable and known increase in income), and then authorized for month three (due to a verified decrease in that income).

EXAMPLE- *A person applies in May who has just been hired for a job. Due to the timing, the person is eligible for May benefits. They provide verifications that their hours during training will exceed those once training is completed. Because of the abnormally high income during training, they are not eligible for June benefits. It has been verified, however, that ongoing hours and income will decrease which makes them again eligible in July. **These must be known and verified changes for this to occur.*** CHIMES handles these situations correctly.

CHANGES REPORTED AFTER THE INTERVIEW:

A household is required to report all changes related to its eligibility and benefit amount at the application and recertification interview. A household is required to report changes per the household's reporting requirements after receiving the notice of eligibility (approval notice).

If a change is reported **after the interview but before the notice of eligibility (approval or denial notice)** is mailed, the change is acted on within 10 days of the change being reported regardless of the household's reporting requirements. A notice is sent to the

household allowing 10 days to verify the change. This change is included in the application eligibility determination. Benefits are not delayed (held or pended) beyond the 30th day following the date of application waiting for verification.

EXCEPTION: Resources available at the time the household is interviewed are used to make the resource determination. Changes in resources that occur or are reported after the interview but prior to the notice of eligibility (approval or denial notice) being mailed to the household are disregarded for the month of application. The changes must be considered in determining resource eligibility for the second month's benefit unless the second month's benefit was already issued or timelines do not allow for an adverse action notice to be sent to the household (SNAP 400).

If there are 10 days before the 30th day of the application processing time frame to verify a change, eligibility is not determined until verification is received. A notice is sent allowing at least 10 days to provide verification of the change. The change is included in the initial application eligibility determination.

If there are not 10 days before the 30th day of the application processing time frame to verify a change, the application eligibility determination is based on information requested at the interview. A notice is sent allowing 10 days to provide verification of the change. If the verification is received before eligibility is determined and the notice of eligibility (approval notice) is mailed to the household, the change is included in the application eligibility determination. If the verification is received after eligibility is determined and the notice of eligibility (approval notice) is sent to the household, the change is included in the eligibility determination for the month after receipt of the verification following notice of adverse action procedures.

DENIAL OF APPLICATION:

When it is known the applicant is ineligible for benefits for the application month AND the applicant does not anticipate a change, the application is denied without waiting until the 30th day. **EXCEPTION: If the household states that their income would make them ineligible, we still need to pend for this income. We must give the household an opportunity to verify their income. The household should be advised of income standards. If no verifications are submitted, the application is denied.**

However, if the applicant anticipates a change that allows eligibility in the second month, verifications are requested to be provided within 10 days after the date of request for verification notice (only after the interview has been done). If eligible in the second month, a notice is sent informing the household the application was denied for the first month and approved for the second month.

If a household member or authorized representative is interviewed but does not provide all the necessary information/verification requested in the notice, the application will be denied 10 days after the date of request for verification notice. See SNAP 104-4, Early Denial Policy section, for further detail about denial in these cases.

If a household member or authorized representative does not complete the initial interview, the notice of missed interview (NOMI) is sent no later than the day after the interview was scheduled or due. The notice informs the household of its responsibility to reschedule the interview if it wants to continue the application process. The OPA may not deny an application before the 30th day for missing its first scheduled interview.

If a household member or authorized representative does not complete an interview and has made no subsequent contact expressing interest in pursuing the application, the denial notice is sent **on the 30th day** following the application date. The notice informs the household that it must report all changes in its circumstances since the application was received. **Households who do not complete the interview within the 30-day window must reapply.**

HOUSEHOLD-CAUSED PROCESSING DELAYS:

If the household has not completed all application processing requirements within 30 days following the date of application, the cause of the delay is determined. The following must occur before it is determined if the household caused the delay:

1. If the application is incomplete, the eligibility staff member must have offered, or attempted to offer the household assistance with completing the application.
2. If required verification is not provided:
 - a. The household must have been provided with a listing of all the required verification needed to process the application and allowed at least 10 days to provide the verification.
 - b. The eligibility staff member must have offered to assist the household in obtaining required verification.
3. If a household member or an authorized representative did not complete the initial interview, the notice of missed interview (NOMI) must have been sent no later than the day after the interview was scheduled or due (per the on-demand interview notice sent on the day of application). The NOMI must inform the household of its responsibility to reschedule or complete the interview within 30 days from the application date. **Households who do not complete the interview within 30 days from the application date must reapply.**

AGENCY-CAUSED PROCESSING DELAYS:

When it is determined the cause for the delay in processing the application is agency-caused, immediate corrective action must be taken. A notice is sent by the 30th day following the application date informing the household that its application is pending. The household is notified of any action it must take to complete the application process. If the household is found eligible during the second 30-day period, benefits are retroactive to the month of application. If the household is found to be ineligible, the application is denied and a denial notice is sent to the household.

DELAYS BEYOND 60 DAYS:

If the processing delay is due to the agency not completing the application process by the end of the second 30-day period, the application continues to be processed until an eligibility determination is reached. If the household is determined eligible and the agency was responsible for the delay in the initial 30 days, the household receives benefits retroactive to the month of application. If the household was responsible for the delay in the initial 30 days and is subsequently determined eligible in the second 30-day period, the benefit amount is prorated from the date the household provides the requested information and/or verification.

If the household is at fault for not completing the application process by the end of the second 30-day period, the application is denied. If the household still wants to receive SNAP benefits, a new application is required.

VOLUNTARY WITHDRAWAL:

The household may voluntarily withdraw its application prior to the eligibility determination. Voluntary withdrawal means the household contacts the agency on its own initiative either orally or in writing and requests the application processing stops. If known, the reason for the withdrawal is documented in case notes and that contact was made with the household to confirm the withdrawal. The household is advised of its right to reapply at any time after a withdrawal. The application form is retained by the OPA.

REFUSAL TO COOPERATE:

Refusal to cooperate means the applicant can cooperate but clearly demonstrates orally or in writing they will not take required steps to complete the application process.

The applicant is provided reasonable assistance with completing the application or obtaining verification before denying the application for refusal to cooperate. If there is any question as to whether the applicant merely failed to cooperate as opposed to refused to cooperate, the application is not denied unless it is clear the applicant is

refusing to cooperate or the time limits have expired for application processing. If an applicant clearly demonstrates refusal to cooperate orally or in writing, the application is immediately denied and the applicant's refusal to cooperate with the application process is thoroughly documented in case notes.

To deny eligibility for the refusal to appear or call for an interview or provide verification, the applicant must clearly refuse orally or in writing and not merely fail to appear or call for the interview or fail to provide specific verification needed to determine eligibility.

The applicant may reapply (SNAP 104-4) but is not determined eligible until he/she cooperates fully with the application process. An applicant is not determined ineligible when someone outside the household fails to cooperate with a request for verification. Individuals who are required filing unit members are not considered outside the household simply due to not being in the assistance unit such as disqualified or ineligible individuals.

STATE OR FEDERAL QUALITY CONTROL REVIEW NON-COOPERATION:

If a household's SNAP case is denied or closed for refusal to cooperate with a State Quality Control (SQC) review or a Federal Quality Control (FQC) review, the household may reapply for SNAP benefits but cannot be determined eligible until it cooperates with the SQC review or FQC review. When unsure of the status of the noncompliance, contact the Program Compliance Unit to confirm the status of the household's cooperation or non-cooperation with the review of the case.

If a household reapplies for SNAP benefits during the disqualification period, the household has 30 days following the application date to cooperate with the SQC review. If the household cooperates with the SQC review within 30 days following the application date, **benefits are determined/prorated from the date the client complies with QC's requirements.**

When a household's SNAP case is closed for refusal to cooperate with State QC, and the household reapplies for SNAP benefits 125 days after the end of the annual State QC review period, the application is processed as a new application because the disqualification ended. The household is no longer required to cooperate. The annual State QC review period is October 1 through September 30; and 125 days after the end of the period is February 2nd. State agencies shall verify all factors of eligibility for households who have been terminated for refusal to cooperate with a State Quality Control Reviewer and reapply after 95 days from the end of the annual review period. State agencies shall verify all factors of eligibility for households that have been

terminated for refusal to cooperate with a Federal Quality Control Reviewer and reapply after seven months from the end of the annual review period.

Effective Date: May 6, 2026